

26PSCV00065 26PSCV00065

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Case Number: 26PSCV00065 Hearing Date: July 27, 2026 Dept: 6

Plaintiff

Tapia Enterprises, Inc. dba Tapia Brothers Company's Request for Entry of Default

Judgment

Defendants: Kalaveras PH Inc., Jose I. Brito, and Francisco Brito

aka Francisco F. Brito

TENTATIVE RULING

Plaintiff's request for entry of default judgment is DENIED without prejudice. Plaintiff's request for entry of default judgment is Plaintiff's request for entry of default judgment is DENIED without prejudice. The Court also vacates the defaults entered against Defendants Jose I. Brito and Kalaveras PH Inc. entered on May 27, 2026, and June 16, 2026, respectively.

BACKGROUND

This is a business dispute. On January 7, 2026, plaintiff Tapia Enterprises, Inc. dba Tapia Brothers Company (Plaintiff) filed this action against defendants Kalaveras PH Inc. (Kalaveras), Jose I. Brito (Jose), and Francisco Brito aka Francisco F. Brito (collectively, Defendants), and Does 1 through 20, alleging causes of action for goods sold and delivered, quantum valebant, open book account, account stated, breach of contract, and personal guaranty.

On April 7, 2026, default was entered as to Francisco.

On May
27, 2026, default was entered as to Jose.

On June 16,
2026, default was entered as to Kalaveras.

On June
16, 2026, Plaintiff requested entry of default judgment against Defendants.

LEGAL STANDARD

Code of
Civil Procedure section 585 permits entry of a default judgment after a party has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff
seeks default judgment against Defendants in the total amount of \$65,137.46, including \$61,588.49 in damages, \$320.60 in interest, \$2,310.27 in attorney fees, and \$918.16 in costs. The Court finds some problems with Plaintiff's default judgment request. First, Plaintiff's proofs of service of the summons and complaint against Jose and Kalaveras indicate that they were served by substitute service under Code of Civil Procedure section 415.20, subdivision (c), i.e., on a commercial mail receiving agency (CMRA). (Proof of Service (5/15/26), ¶ 5, subds. (b)(3), (b)(5); Proof of Service (6/8/26), ¶ 5, subds. (b)(3), (b)(5).) However, these proofs of service contain no affidavit or certificate of mailing the summons and complaint from an authorized representative of the

CMRA indicating compliance with Business and Professions Code section 17538.5, subdivision (d). (See Code Civ. Proc., § 415.20, subd. (c); Bus. & Prof. Code, § 15738.5, subd. (d).) “[A] party relying on service through [Business and Professions Code] section 17538.5 must show that all of the statute’s requirements as to the CMRA are followed.” (Jennings v. United W. Recovery (C.D. Cal. 2020 WL 9422403, at p. *2, citing and subsequently quoting Premier Cap., LLC v. N. Aircraft Servs., Inc. (2007) 2007 WL 1464623, at p. *6[1]; cf. Kremerman v. White (2021) 71 Cal.App.5th 358, 373 [noting the CMRA representative’s declaration indicating failure to comply with timing requirements of Business and Professions Code section 17538.5, subdivision (d)].) None of the other proofs of service on file indicate compliance with Business and Professions Code section 17538.5, subdivision (d), either. Accordingly, the Court hereby VACATES the defaults entered against Jose and Kalaveras.

Second, regarding attorney fees, Plaintiff’s calculation appears to be based on the original principal damages claimed and does not account for the credit applied. (Sherman Decl., ¶ 5; Local Rule, rule 3.214.) The Court also notes that the Complaint only prays for attorney fees against Kalaveras per Civil Code section 1717.5 under the Fourth Cause of Action, but generally prays for attorney fees against only Jose and Francisco under the Sixth Cause of Action. (Compl., p. 6, ll. 14, 26.) Relief awarded in a default judgment cannot exceed the amount demanded in the complaint. (Code Civ. Proc., § 580, subds. (a)-(c); Pattera v. Hansen (2021) 64 Cal.App.5th 507, 536; Greenup v. Rodman (1986) 42 Cal.3d 822, 826.) “The purpose of [Code of Civil Procedure] section 580 is to require the plaintiff to provide notice of the maximum amount of the defendant’s potential liability.” (Electronic Funds Solutions, LLC v. Murphy (2005) 134 Cal.App.4th 1161, 1174; see also Becker v. S.P.V. Constr. Co. (1980) 27 Cal.3d 489, 494 [“a prayer for damages according to proof passes muster under section 580 only if a specific amount of damages is alleged in the body of the complaint. [Citation]”].) “The courts have consistently held section 580 is an unqualified limit on the jurisdiction of courts entering default judgments. As a general rule, a default judgment is limited to the damages of which the defendant had notice. Further, the courts have reaffirmed the language of section 580 is mandatory. Therefore, ‘in all default judgments the demand sets a ceiling on recovery.’” (Finney v. Gomez (2003) 111 Cal.App.4th 527, 534, fns. omitted, quoting Greenup v. Rodman (1986) 42 Cal.3d 822, 824.) Because that ceiling is jurisdictional, “a default judgment is void when the damages are in excess of the damages specified in the complaint or the statement of damages.” (Yeung v. Soos (2004) 119 Cal.App.4th 576, 582.) Since

the attorney's fees recoverable under Civil Code section 1717.5 are limited to a certain amount and the attorney's fees sought pursuant to the contract are a different amount, Plaintiff may not seek the same amount of attorney fees against each of the Defendants, unless Plaintiff elects the lower statutory amount.

While the default judgment package otherwise appears to be proper as to Francisco, the Court cannot grant default judgment against Francisco only at this time unless the Court were to grant a separate judgment, which Plaintiff has not requested here. (Cal. Rules of Court, rule 3.1800, subd. (a)(7); Code Civ. Proc., § 579.)

CONCLUSION

Based on the foregoing, Plaintiff's request for entry of default judgment is Plaintiff's request for entry of default judgment is DENIED without prejudice. The Court also vacates the defaults entered against Defendants Jose I. Brito and Kalaveras PH Inc. entered on May 27, 2026, and June 16, 2026, respectively.

[1] While the Court may not cite an unpublished California Court of Appeal decision, it may cite an unpublished federal decision for persuasive value. (Aguirre v. Amscan Holdings, Inc. (2015) 234 Cal.App.4th 1290, 1298, fn. 5.)